

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X **SUMMONS**

CHESTERFIELD HOPE,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE SERGEANT WILLIAM LARKIN, POLICE OFFICER FRANK RYAN, POLICE DETECTIVE "JOHN" GIGANTEE, (FIRST NAME FICTITIOUS AS FULL IDENTITY IS CURRENTLY UNKNOWN), POLICE OFFICER "JOHN" PICCIANO, (FIRST NAME FICTITIOUS AS FULL IDENTITY IS CURRENTLY UNKNOWN), POLICE OFFICER CHRISTOPHER AMUSO, POLICE OFFICER MICHAEL CALE, POLICE OFFICER IGNACIO DELRIO,

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 26, 2020

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

POLICE SERGEANT WILLIAM LARKIN
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE OFFICER FRANK RYAN
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE DETECTIVE "JOHN" GIGANTEE
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE OFFICER "JOHN" PICCIANO
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE OFFICER CHRISTOPHER AMUSO
191 Union St, Brooklyn, NY 11231

POLICE OFFICER MICHAEL CALE
76th PRECINCT
191 Union St, Brooklyn, NY 11231

POLICE OFFICER IGNACIO DELRIO
76th PRECINCT
191 Union St, Brooklyn, NY 11231

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X

CHESTERFIELD HOPE,

Plaintiff,

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK, POLICE SERGEANT WILLIAM LARKIN, POLICE OFFICER FRANK RYAN, POLICE DETECTIVE "JOHN" GIGANTEE, (FIRST NAME FICTITIOUS AS FULL IDENTITY IS CURRENTLY UNKNOWN), POLICE OFFICER "JOHN" PICCIANO, (FIRST NAME FICTITIOUS AS FULL IDENTITY IS CURRENTLY UNKNOWN), POLICE OFFICER CHRISTOPHER AMUSO, POLICE OFFICER MICHAEL CALE, POLICE OFFICER IGNACIO DELRIO
 Defendants,

-----X

Plaintiff, CHESTERFIELD HOPE, by his attorneys, LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff CHESTERFIELD HOPE brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the DEFENDANTS POLICE SERGEANT WILLIAM LARKIN, POLICE OFFICER FRANK RYAN, POLICE DETECTIVE "JOHN"

GIGANTEE, (FIRST NAME FICTITIOUS AS FULL IDENTITY IS CURRENTLY UNKNOWN), POLICE OFFICER “JOHN” PICCIANO, (FIRST NAME FICTITIOUS AS FULL IDENTITY IS CURRENTLY UNKNOWN), POLICE OFFICER CHRISTOPHER AMUSO, POLICE OFFICER MICHAEL CALE, POLICE OFFICER IGNACIO DELRIO, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Queens County, City, and State of New York.

5. That within 90 days after the state law claim of false arrest accrued, Plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the DEFENDANTS by delivering a copy thereof to the person designated by law as a person to whom such claims November be served.

6. That Plaintiff appeared for a hearing pursuant to §50-H of the General Municipal Law on or about June 2, 2020.

7. That the DEFENDANTS have not adjusted, settled or paid the same.

8. That, on March 17, 2020, the Governor of the State of New York issues an Administrative Order AO/3/2020 suspending the statute of limitations.

9. That subsequent administrative and executive orders continue the initial order suspending the statute of limitation.

10. That this claim has been commenced and this action has been started within the statute of limitation period, continuing and up to, November 03, 2020.

11. That all conditions and requirements precedent to the commencement of this action have been complied with.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

13. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

14. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

15. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

16. Chesterfield Hope is a 50-year old man who receives disability for his diagnosis of scoliosis.

17. On January 29, 2019, Mr. Hope was in his apartment with his mother, his mother's home attendant, the home attendant's three children, his cousin, and a few friends.

18. After returning from Fortune Society, Mr. Hope went into his living room and started to eat dinner.

19. After about fifteen minutes, police banged on the door very loudly as if they were going to break through the door. They did not announce that they were police.

20. Ms. Hope's mother, Luxzoria hope, went to open the door.

21. When she opened the door, over four officers barged into the apartment, causing Ms. Hope, a 70 year old woman, to fall down and be injured.

22. Upon entering the apartment, the Police went directly to the back of the apartment.

23. They broke the lock on the door, caused a commotion, and started attacking those who were inside. One of Mr. Hope's friends was on the floor screaming while he was being stomped and kicked after he was thrown on the ground.

24. While this was taking place, Mr Hope was handcuffed, taken to the room in the back, and was placed on the bed.

25. While he was being taken to the back room, he was slammed against the bannister, breaking the bannister, and knocking Mr. Hope unconscious.

26. While he was in the bedroom, Mr. Hope was illegally strip searched, as the officers *inter alia*, pulled his pants down and searched him.

27. After the illegal search and attacking people in the apartment, the police dragged Mr. Hope outside the apartment. His pants were still down when he was dragged outside and he was not able to put them on until the precinct or the hospital.

28. Plaintiff was unlawfully arrested and charged with, *inter alia*, Penal Law § 220.03.

29. Plaintiff was arraigned on January 31, 2019 and Bail was set at \$1,500 cash over \$1,500 bond. Plaintiff was incarcerated for approximately thirty days prior to making bail.

30. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF

NEW YORK, its agents, servants and/or employees.

31. All charges against Plaintiff were dismissed on or about June 30, 2019. Plaintiff had approximately 17 court appearances.

32. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

33. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

34. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

35. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

36. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER FEDERAL AND STATE LAW**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. That on January 29, 2019, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

39. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

40. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

41. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER FEDERAL AND STATE LAW**

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

44. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

45. DEFENDANTS commenced this criminal action out of malice.

46. The criminal action against Plaintiff has terminated in his favor.

47. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

48. That Plaintiff was conscious of the confinement.

49. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

50. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

51. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

52. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

53. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

54. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

55. The misconduct by DEFENDANTS described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

56. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FOURTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

57. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

58. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to all other DEFENDANTS, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

59. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

60. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C. § 1983**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

62. That DEFENDANTS falsely stated under penalty of perjury, and then forward this information to the Kings County District Attorney's Office ("KCDA"), information made to give the misleading and false impression that the, *inter alia*, arrest and detainment and prosecution of Plaintiff was legally justified.

63. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Kings County District Attorney's Office, used to secure an indictment, and utilized at trial.

64. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

65. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

66. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

67. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**SIXTH CAUSE OF ACTION:
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983**

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

70. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**SEVENTH CAUSE OF ACTION:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

72. That, on January 29, 2019, DEFENDANTS, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

73. That, on January 29, 2019, DEFENDANTS committed an assault and battery knowingly, intentionally, and willfully.

**EIGHTH CAUSE OF ACTION:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

75. In detaining Plaintiff, DEFENDANTS used force.

76. The force used was unreasonable and excessive.

77. As a result of the unreasonable and excessive force, Plaintiff suffered injuries and substantial pain requiring medical attention.

78. DEFENDANTS' use of force was a substantial factor in causing the harm to Plaintiff.

79. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

**NINTH CAUSE OF ACTION:
UNLAWFUL ENTRY UNDER STATE AND FEDERAL LAW**

80. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

81. DEFENDANTS entered the home of Plaintiff without a search warrant or an exigency.

82. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

83. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**TENTH CAUSE OF ACTION:
UNREASONABLE STRIP SEARCH UNDER STATE AND FEDERAL LAW**

84. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

85. This public strip search done without reasonable suspicion by the defendants violated the Fourth and Fourteenth Amendments.

86. As a direct and proximate results of this unlawful conduct, plaintiff sustained the damages herein before alleged.

**ELEVENTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

87. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

88. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State

Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

89. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

DAMAGES

90. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

91. This action seeks damages from on or prior to January 29, 2019 through the present.

92. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

93. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation .

94. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court November deem appropriate and equitable.

Dated: New York, New York
October 26, 2020

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
CHESTERFIELD HOPE
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for Plaintiff CHESTERFIELD HOPE. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
August 16, 2020



MASAI I. LORD
Counsel for Plaintiff